



File No.: EXP202312993

RESOLUTION OF RIGHTS PROCEDURE

Considering the complaint registered on August 18, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On August 18, 2023, a complaint was submitted to this Agency by Ms. A.A.A. (hereinafter, the complainant) against the COMMUNITY OF OWNERS R.R.R. (hereinafter, the respondent) for not having duly addressed the right of rectification.

On August 26, 2022, the complainant requested the respondent to modify her postal address and email for notification purposes "(...) expressly requiring that any other addresses that have been communicated to her be rendered ineffective (...)", with the receipt of the request signed by the respondent.

On July 30, 2023, the complainant received an email at the address she requested to be rendered ineffective for notifications, attaching, among other things, the notice for the 2023 meeting. She provides a copy of both the request signed by the respondent and the received email.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

There is no record of any response being submitted.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on November 18, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, to present any allegations deemed appropriate within ten working days.

The respondent indicated that they sent the notice of the meeting to the email address they had in their database since 2000, which belongs to the complainant's son. They also stated that they sent the notice by postal mail to the owner's address.

The respondent indicated that "(...) it is true that the owner's grandson and son of the contact data that I have always had in my database informed me that notifications regarding the community should be sent to his email. However, by mistake, notifications regarding emails were sent to the one I have always had in my database, that is, to the owner's son. I apologize for the error and inform that I have corrected the correct email."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, she may formulate any allegations she deems appropriate.

The complainant stated that she has no descendants, so the email was neither her son's nor her grandson's.

"Secondly, the complaint is not about the email sent to summon me to the owners' meeting, but an email sent to other owners as justification for having made that summons and as criticism towards me for having expressed my opinion on some matters of the management and administration of the community. It is in that email (attached photograph of it) where the previously attached file to this complaint (correo_gmail.pdf) is included, and where my representative's personal email can be seen, an email that had been invalid for a year and accepted by C.C.C. to render ineffective as can be seen in the previous attached document of cambio_domicilio_y_aceptacin_poder_notarial.pdf, signed by him on August 26, 2022."

FIFTH: The responsible party was granted a hearing, and there is no record of any response being

submitted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by data subjects and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation for data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The outcome of this forwarding did not allow for the satisfaction of the complainant's claims.

Consequently, on November 18, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

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Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Rectification

Article 16 of the GDPR, which regulates the right to rectification of inaccurate personal data, establishes the following:

"The data subject shall have the right to obtain from the controller without undue delay the rectification of inaccurate personal data concerning them. Taking into account the purposes of the processing, the data subject shall have the right to have incomplete personal data completed, including by means of a supplementary statement."

V

Conclusion

The rights procedure is instructed as a consequence of the lack of attention to one of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

In this case, and considering what is indicated in the first paragraph of this legal basis, from the examination of the documentation provided, it has been established that

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It is established that the claimant requested the rectification of their personal data from the respondent, and that the latter did not respond.

During the processing of the present procedure, the respondent has indicated that they have rectified the data, but they do not provide evidence of having addressed the request made by the claimant, sending them the required response to their request.

Thus, it cannot be accepted that the response that should be given can be expressed merely as part of an administrative procedure, such as the submission of allegations regarding the present procedure, which was initiated precisely for not adequately addressing the request in question.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties are obliged to issue, even in the

event that there are no data in the files or even in those cases where the request does not meet the stipulated requirements, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the claim that originated the present procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. considering that the provisions of Article 16 of the GDPR have been infringed and to urge the COMMUNITY OF OWNERS R.R.R. with NIF ***NIF.1, to send the claimant a certification within ten working days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to the COMMUNITY OF OWNERS R.R.R.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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